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Subject: GEC18 - Ethics
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ASSIGNMENT#4

1. What is Civil Obligation?

A civil obligation is a legally enforceable duty between two parties, where the creditor has the right to demand that the debtor perform a specific act, such as giving something, doing something, or refraining from doing something. Unlike a mere moral duty, a civil obligation allows the creditor to invoke the power of the courts to compel performance or seek damages if the debtor fails to comply.

2. What are Legal Duties?

Legal duties are standards of conduct required by law, such as statutes, regulations, or court decisions, that an individual or entity must follow. Failure to fulfill a legal duty results in legal liability, penalties, or sanctions, and these duties are owed to society or specific persons, distinguishing them from purely moral or ethical obligations.

3. Differentiate justice from fairness.

Justice refers to the formal principle of giving each person what they are due according to objective rules, laws, or rights, often focusing on proper legal outcomes and punishment for wrongdoing. Fairness, in contrast, is a more subjective and procedural concept concerned with whether processes, distributions, or treatments are perceived as evenhanded, impartial, and free from favoritism or arbitrary discrimination.

4. Define and explain Justice and Fairness.

Justice is the moral and legal concept of rightness based on laws, rights, and deserts, ensuring that individuals receive what they properly deserve, such as rewards for good acts or penalties for bad ones, and it often operates through formal institutions like courts. Fairness is the quality of treating people equally without bias or self-interest, particularly in how rules are applied or resources are distributed; it emphasizes impartial decision-making and the avoidance of undue advantage, though what is fair may sometimes require treating unequal people unequally depending on the context.

5. Enumerate the Principles of Fairness & Principles of Justice.

The principles of fairness typically include impartiality, consistency, non-arbitrariness, transparency, and the equitable treatment of similarly situated individuals. The principles of justice include equality before the law, proportionality (punishment or reward fitting the act), redress for wrongs, protection of basic rights, and impartial enforcement of rules, with prominent formulations including distributive justice, retributive justice (deserved punishment for wrongdoing), and procedural justice (fair processes for deciding outcomes).

6. What are the different Kinds of Justice.

The different kinds of justice include distributive justice, which concerns the fair allocation of society's resources and opportunities; retributive justice, which focuses on just punishment for crimes; compensatory or corrective justice, which addresses remedying harm done to another person; procedural justice, which emphasizes fair processes and procedures in legal and administrative decisions; and social justice, which seeks to address systemic inequalities and ensure basic human rights for all members of society.

7. What is Taxation?

Taxation is the compulsory financial charge or levy imposed by a government on individuals, businesses, or property to fund public expenditures, such as infrastructure, defense, education, health care, and social services. It is a mandatory payment, not a voluntary contribution, and failure to pay taxes typically results in penalties or legal enforcement.

8. What is the Philosophical view of Taxation?

The philosophical view of taxation considers the moral and political justification for the state's power to take private property through compulsory levies. Major perspectives include the social contract theory, where citizens consent to taxation in exchange for state protection and services; the utilitarian view, which holds that taxation is justified if it maximizes overall happiness and welfare; and libertarian objections, which argue that taxation is a form of forced labor or theft that violates individual property rights unless strictly limited to funding minimal state functions.

9. Are taxes moral? Explain.

Taxes are generally considered moral to the extent that they fund essential public goods and services that benefit society, such as roads, courts, police, and schools, which individuals cannot efficiently provide for themselves. The morality of taxes depends on whether the tax system is just, equitable, and transparent, and whether the revenue is used for legitimate common purposes rather than wasteful or oppressive ends. Some argue that taxes are a moral duty because citizens receive benefits from the state, while others contend that excessive or unfairly structured taxes violate individual freedom and property rights.

10. What are the Principles of a Sound Tax System? Define each.

The principles of a sound tax system are fiscal adequacy, equality or theoretical justice, and administrative feasibility. Fiscal adequacy means that the tax system must generate sufficient revenue to meet government expenditures and public needs without excessive borrowing. Equality or theoretical justice requires that taxes be imposed based on the taxpayer's ability to pay, often through progressive taxation where richer individuals pay a higher percentage or share, ensuring that the burden is fairly distributed. Administrative feasibility means that taxes should be clear, easy to comply with, efficient to collect, and not excessively costly for either the government or the taxpayer to enforce or pay.